

25VECV05578 25VECV05578

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-06

Motion: MOTION TO COMPEL DEPOSITION OF PERSON MOST QUALIFIED

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Case Number: 25VECV05578 Hearing Date: August 6, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

SAEED

ANAVIM, an individual,

Plaintiff,

vs.

BOB SMITH VC CALABASAS, LLC, a Limited Liability

Company, et al.

Defendants.

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CASE

NO: 25VECV05578

[TENTATIVE]

ORDER RE: MOTION TO COMPEL DEPOSITION OF PERSON MOST QUALIFIED

Dept.

I

HEARING

DATE: August 6, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: September 30, 2025

TRIAL

DATE: February 16, 2027

I.

BACKGROUND

This is a Song-Beverly Act ("SBA") lemon law action arising out of Plaintiff Saeed Anavim's ("Plaintiff") purchase of a new 2023 BMW X3 sDriver30i, VIN: 5UX43DP0XP9P44439 (the "Subject Vehicle") manufactured by Defendant BMW of North America, LLC ("BMW") and repaired by Defendant Robert A. Smith Inc. d/b/a Bob Smith BMW-MINI, erroneously sued as Bob Smith VC Calabasas LLC ("BSBM"). On September 30, 2025, Plaintiff filed the operative Complaint against BMW, BSBM, and DOES 1 through 10 (collectively, "Defendants"), asserting causes of action for: (1) Breach of Express Warranty; (2) Breach of Implied Warranty; and (3) Negligent Repair.

On October 31, 2025, BMW filed its Answer to the Complaint.
On November 4, 2025, BSBM filed its Answer to the Complaint.

On June 12, 2026, Plaintiff filed the instant Motion to Compel Deposition of Person Most Qualified ("PMQ"). On July 17, 2026, BMW filed an Opposition. On July 20, 2026, Plaintiff filed a Reply.

II.

LEGAL

STANDARDS

Pursuant to the Code of Civil Procedure Section 2025.010, any party may obtain discovery (subject to the scope and restrictions provided by law) "by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.) A party must present a qualified person for each deposition. (Maldonado v. Superior Court (2002) 94 Cal.App.4th 1390, 1398.)

"If,

after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to

proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

III.

DISCUSSION

Plaintiff

moves for an order compelling BMW to produce its PMQ for deposition and responsive documents on the grounds that: (1) BMW failed to produce its PMQ for deposition and/or provide alternative dates; (2) BMW served only boilerplate objections; and (3) Matters for Examination ("MFE") nos. 1-34 and Request for Production of Documents ("RFP") nos. 1-16 are relevant and material to Plaintiff's claims.

A.

Meet and Confer

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) Specifically, "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) "[A]ttempting informal resolution means more than the mere attempt by the discovery proponent 'to persuade the objector of the error of his ways' and 'a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Here, Plaintiff's counsel of record,

Jacob Shayesteh, states that on April 24, 2026, he sent a meet and confer email

to defense counsel, Ryan Chang requesting dates for the deposition of BMW's PMQ. (Shayesteh Decl., ¶8, Ex. 2; Mack Decl., ¶5, Ex. A.) On May 12, 2026, Mr. Shayesteh followed-up on the request for availability of the PMQ's deposition. (Shayesteh Decl., ¶9, Ex. 3; Mack Decl., ¶6, Ex. B.) On May 14, 2026, the parties spoke on the telephone and Mr. Chang advised that he was working on obtaining a date for the deposition and that the PMQ was newly assigned. (Mack Decl., ¶7.) On May 18, 2026, BMW's counsel, Dylan Mack offered December 9, 2026 or December 22, 2026 as deposition dates, which Plaintiff rejected. (Shayesteh Decl., ¶¶10-11, Ex. 4; Mack Decl., ¶¶9-11, Ex. C.) Plaintiff, then unilaterally served a deposition notice on May 27, 2026 and BMW served its objections on June 1, 2026. (Shayesteh Decl., ¶¶13-14, Ex. 5; Mack Decl., ¶¶12-13, Ex. D.) Thereafter, Mr. Shayesteh served another meet and confer letter. (Shayesteh Decl., ¶15, Ex. 6; Mack Decl., ¶14, Ex. E.) The parties telephonic met and conferred after the filing of the motion and BMW offered September 17, 2026 for the deposition but Plaintiff conditioned acceptance upon BMW agreeing to produce its PMQ on all 34 MFEs and withdraw its objections. (Mack Decl., ¶¶17-18, Ex. G.) Thus, the Court finds that Plaintiff fulfilled its meet and confer obligations.

B.

Merits of Motion

Upon review of the MFEs, the Court finds that MFE nos. 1, 4-10, 12-13, and 31 concern the following categories: (1) documents and questions related to repurchase and replacement requests of the Subject Vehicle including the research and investigation actions taken by BMW; (2) documents and questions related to repair history, procedures, and communications between Defendant, Plaintiff, and/or third-parties for the Subject Vehicle; (3) documents and questions related to warranty history, procedures, and communications between Defendant, Plaintiff, and/or third-parties for the Subject Vehicle. Contrary to BMW's objections, these MFEs are not vague, ambiguous, and/or overbroad. (See Code Civ. Proc., § 2017.010 ["[A]ny party may obtain discovery regarding any matters, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence."].)

Here, MFE nos. 1, 4-10, 12-13, and 31 are relevant and narrow in scope as Plaintiff's claims against BMW are for negligent repair, breach of express warranty, and breach of implied warranty.

These MFEs are limited to communications between the parties and/or third-parties in connection to the Subject Vehicle's repair and warranty history (negligent repair and warranty claims); and requests documents related to the repurchase and replacement requests Plaintiff made regarding the Subject Vehicle (implied warranty claim). As such, these MFEs are reasonably calculated to lead to admissible evidence that will address Plaintiff's claims against BMW. Likewise, BMW fails to show that it cannot provide an intelligible response to these MFEs. (See *Cembrook v. Superior Court In and For City and County of San Francisco* (1961) 56 Cal.2d 423, 430 ["If [the court] finds some requests too ambiguous to allow intelligent reply, it may sustain objection to them or, more consistently with justice, it may order such questions to be rephrased."].)

To the extent that (i) MFE nos. 17 and 22 seek information regarding BMW's policies, procedures, or other guidelines related to repurchases and replacement requests from 2021 to present under the SBA and (ii) MFE no. 2 seeks BMW's policies, procedures, or other guidelines in responding to consumer complaints alleging the Subject Vehicle is defective from 2021 to present, the Court agrees that such requests are overbroad. Essentially, these MFEs seek information encompassing a five-year span. However, the Subject Vehicle was manufactured 2023. Therefore, MFE nos. 2, 17, 22 should be limited to policies, procedures, or other guidelines related to repurchases and replacement requests, and consumer complaints alleging the Subject Vehicle was defective that were in effect from 2023 to present, i.e., that were in effect when the Subject Vehicle was manufactured. Plaintiff fails to demonstrate good cause exists to seek information under such an expansive timeframe for the Subject Vehicle, which was manufactured in 2023.

Moreover, the Court finds that MFE nos. 3, 11, 14-15, 18, 23, 29-30, and 32-33 are overbroad and vague. Specifically, Plaintiff seeks "all communications" with Plaintiff; "all" documents BMW reviewed in investigating the cause of the complaints alleged regarding the Subject Vehicle; "all" investigations or analysis performed to determine the defects complained of; "all" telephone calls made by anyone including Plaintiff to BMW's customer service assistance number regarding the Subject Vehicle; and "any and all" BMW's responses to Plaintiff's discovery; "any and all" BMW's pleadings filed in this instant action. These MFEs should be limited in scope to information related to: (1) diagnostic procedures and policies consulted and followed in diagnosing the defects of the Subject Vehicle, which covers BMW's investigative procedures used to determine the cause of the alleged defects; and

(2) communications with Plaintiff regarding the defects affecting the Subject Vehicle, scheduling repairs for the Subject Vehicle, and requesting repurchase of the Subject Vehicle.

Lastly, MFE nos. 16, 19-21, and 24-28 seek “all” policies, procedures or other guidelines regarding recording calls made to BMW’s customer service number; the nature of BMW’s relationship with the company that handles its customer service calls; BMW’s ownership interest in the company that handles its customer service calls; the policies and procedures to be followed by the customer service company; and task and duties BMW authorizes the company that handles its customer service calls from 2021 to present. As for the MFE pertaining to the policies, procedures, or other guidelines regarding the calls made to BMW’s customer service number, it is already encompassed by MFE nos. 1, 4-10, 12-13, and 31.

With respect to information regarding the duties or tasks BMW authorizes the company that handles its customer service calls to do, such request is relevant to Plaintiff’s warranty claims because they concern whether BMW’s customer service number agents complied with the SBA but should be limited to the year the Subject Vehicle was manufactured. However, Plaintiff fails to demonstrate good cause exists to permit the examination into BMW’s relationship with and/or ownership interest in the company that handles its customer service calls. In fact, Plaintiff has not alleged any claims against the customer service company used by BMW, which would make inquiry into these matters relevant to this instant action or reasonably calculated to lead to admissible evidence.

C.

Request for Monetary Sanctions

“If a motion under [Code of Civil Procedure, section 2025.450, subdivision (a)] is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Here, Plaintiff’s counsel, Mr. Shayesteh

requests \$5,475.00 in monetary discovery sanctions against BMW and its attorneys of record for 11.4 hours of attorney time reviewing and analyzing correspondence, BMW's objections and drafting meet and confer correspondence, drafting the present motion and supporting documents; preparing the deposition notice; reviewing the opposition and drafting the reply; preparing for and attending the hearing on the motion at an hourly rate of \$475.00 per hour plus \$60.00 filing fee. (Shayesteh Decl., ¶¶18-19.) However, BMW's counsel actively engaged in meet and confer efforts, provided dates available at the time, provided an additional one once it became available, and timely served objections while awaiting correspondence from its client regarding the newly assigned PMQ's availability. (Mack Decl., ¶¶7-18.) As such, imposing sanctions at this time would be unjust.

D. CONCLUSION

Plaintiff

Saeed Anavim's Motion to Compel Deposition Attendance of BMW's Person Most Qualified is GRANTED IN PART and DENIED IN PART. The request for sanctions is also DENIED.

Defendant

BMW of North America, LLC is ordered to produce its Person Most Qualified on September 17, 2026 as to Matters for Examination nos. 1, 2-15, 17-18, 22-24, 26, 29-33 and produce responsive documents subject to the limitations set forth in this order.

Plaintiff

Saeed Anavim to give notice.

Dated: August
6, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court